TOWN OF MOUNT PLEASANT, SOUTH CAROLINA
BOARD OF ZONING APPEALS
APRIL 29, 2024
MINUTES

STAFF REPORT

Present: Stephen Wood, Chair, Giles Branch, Megan Stevens, Elliott Barrow, Aaron Butner, Molly Hall.
Absent: Julian Hopkins.
Staff: Chris Swalhah, Lynnette Lynes, and Zachary Kerney, Guest Counsel

Mr. Wood called the meeting to order at 6 pm.

A. Approval of Agenda

Mr. Butner moved for approval of the agenda. Mr. Branch seconded the motion. All in favor.

B. Approval of Minutes

Mr. Butner moved for approval of the minutes. Mr. Branch seconded the motion. All in favor.

C. Public Comment
D. General Correspondence

There being no comments or correspondence, Mr. Wood continued with the agenda.

E. Explanation of Procedures

Mr. Wood reviewed the procedures with the public.

F. Administration of Oath

Mr. Wood administered the oath to those speaking.

G. Business

1. Case S-01-24, 210 West Coleman Boulevard, TMS# 517-00-00-042. Request for special exception to allow a telecommunications tower to be placed on an AB-2 zoned parcel.

- Mr. Swalhah reviewed staff comments with the Board.
- Mr. Gray Soapes, WCBD, and Juan Scalfani reviewed the request with the Board.

- *Mr. Barrow moved for a continuance up to 180 days for the applicant to ensure all pre-requisites are satisfied. Mr. Branch seconded the motion. All in favor.*

2. Case V-15-22, 805/807 Simmons Street, TMS# 532-05-00-135. Request for an extension of the vested rights period in accordance with §156.049.

- Mr. Swalhah reviewed staff comments with the Board.

- *Mr. Branch moved for approval of the vested rights extension. Ms. Hall seconded the motion. All in favor.*

3. Case V-18-24, 1328 Erckmann Drive, TMS# 532-07-00-059. Request for relief from the strict application of §156.111(A) to allow the existence of an Accessory Dwelling Unit (ADU) before the construction of the Principal Dwelling. The ordinance requires principal buildings to be in place before the construction of accessory buildings.

- Mr. Swalhah reviewed staff comments with the Board.

- Mr. Richard Hudson, owner, reviewed the request with the Board.

- Mr. Neal Sutler, 1333 Erckmann Drive, suggested that in addition to the ADU there are a couple of trailers that the owner has allowed others to live in. He expressed concern that the property would be utilized for multiple rental units. He also suggested that there have been several boats stored on the property as well.

- Mr. Hudson responded to the comments and stated that he has been working to clean up the property.

- There being no further comments, Mr. Wood closed public comments.

- *Ms. Stevens moved for approval based on the findings that the there are extraordinary conditions as the ADU was approved for construction prior to the main building being constructed; denial would prohibit the utilization of the property as a main structure could not then be constructed; there is no detriment as the request would improve the property and neighborhood. Mr. Butner seconded the motion. All in favor.*

4. **Case V-19-24, 1098 S. Shadow Drive, TMS# 535-16-00-137. Request for relief from the strict application of §156.231(C)(1) to waive the required mitigation for an illegally removed 22.5'' Hickory Tree.**

- Mr. Swalhah reviewed staff comments with the Board.

- Mr. Charles Peaslee, owner, reviewed the request with the Board.

- There being no comments, Mr. Wood closed public comment.

- *Ms. Hall moved for approval for a reduction of the mitigation required to $948.38 based on the findings that a tree removal permit was previously granted for a reduced mitigation of 25%; removal was required because of danger to the home; there was miscommunication between the applicant and staff; there is no detriment as the tree was in poor condition and could cause danger. Mr. Branch seconded the motion. Motion passed on a 5 to1 vote with Mr. Butner, Mr. Branch, Ms. Stevens, Ms. Hall, and Mr. Wood in favor; Mr. Barrow opposed.*

5. **Case V-20-24, 1287 Abercorn Trace, TMS# 580-06-00-074. Request for relief from §156.225(C) to allow the removal of a 25'' Chestnut Oak tree.**

- Mr. Swalhah reviewed staff comments with the Board.

- Mr. Trey Gantt, owner, reviewed the request with the Board.

- There being no comments, Mr. Wood closed public comment.

- *Mr. Barrow moved for denial based on the findings that the variance criteria has not been met in that there are no extraordinary conditions for this property other than those occurring due to construction; conditions could apply to other properties; there is no evidence that denial would unreasonably restrict use of property; there is detriment to the neighborhood as trees are a necessary part of nature and promotes oxygenation through photsynthesis. Mr. Branch seconded the motion. All in favor.*

There being no further business, the meeting adjourned at 7:16 pm.

Submitted by,
L. Lynes
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